

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 683

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO SEX OFFENDERS; AMENDING SECTION 18-8303, IDAHO CODE, TO DEFINE TERMS AND TO REVISE A DEFINITION; AMENDING SECTION 18-8329, IDAHO CODE, TO REVISE PROVISIONS REGARDING WHERE A SEX OFFENDER RESIDES; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-8303, Idaho Code, be, and the same is hereby amended to read as follows:

18-8303. DEFINITIONS. As used in this chapter:

(1) "Aggravated offense" means any of the following crimes: 18-1506A (ritualized abuse of a child); 18-1508 (lewd conduct); 18-4003(d) (murder committed in the perpetration of rape); 18-4502 (first-degree kidnapping committed for the purpose of rape, committing any lewd and lascivious act upon any child under the age of sixteen years or for purposes of sexual gratification or arousal); 18-4503 (second-degree kidnapping where the victim is an unrelated minor child and the kidnapping is committed for the purpose of rape, committing any lewd and lascivious act upon any child under the age of sixteen years or for purposes of sexual gratification or arousal); 18-6101 (rape, but excluding section 18-6101(1) where the victim is at least twelve (12) years of age or the defendant is eighteen (18) years of age and section 18-6101(2) where the victim is sixteen (16) or seventeen (17) years of age and the defendant is no more than five (5) years older than the victim); 18-6604 (forcible penetration by use of a foreign object); chapter 86, title 18, (human trafficking); and any other offense set forth in section 18-8304, Idaho Code, if at the time of the commission of the offense the victim was below the age of thirteen (13) years or an offense that is substantially similar to any of the foregoing offenses under the laws of another jurisdiction or military court or the court of another country.

(2) "Board" means the sexual offender management board described in section 18-8312, Idaho Code.

(3) "Central registry" means the registry of convicted sexual offenders maintained by the Idaho state police pursuant to this chapter.

(4) "Certified evaluator" means either a psychiatrist licensed by this state pursuant to chapter 18, title 54, Idaho Code, or a master's or doctoral level mental health professional licensed by this state pursuant to chapter 23, chapter 32, or chapter 34, title 54, Idaho Code. Such person shall have, by education, experience and training, expertise in the assessment and treatment of sexual offenders, and such person shall meet the qualifications and shall be approved by the board to perform psychosexual evaluations in this state, as described in section 18-8314, Idaho Code.

(5) "Department" means the Idaho state police.

(6) "Employed" means full-time or part-time employment exceeding ten (10) consecutive working days or for an aggregate period exceeding thirty (30) days in any calendar year, or any employment that involves counseling, coaching, teaching, supervising or working with minors in any way regardless of the period of employment, whether such employment is financially compensated, volunteered or performed for the purpose of any government or education benefit.

(7) "Foreign conviction" means a conviction under the laws of Canada, Great Britain, Australia or New Zealand, or a conviction under the laws of any foreign country deemed by the U.S. department of state, in its country reports on human rights practices, to have been obtained with sufficient safeguards for fundamental fairness and due process.

(8) "Habitually lives" means any place where a person lives, sleeps, or visits with any regularity, including where a homeless person is stationed during the day or sleeps at night, and any place where a person visits for longer than five (5) hours per visit more than five (5) times within a thirty (30) day period.

(9) "Homeless" means having no fixed residence.

~~(8)~~ (10) "Incarceration" means committed to the custody of the Idaho department of correction or department of juvenile corrections, but excluding cases where the court has retained jurisdiction.

~~(9)~~ (11) "Jurisdiction" means any of the following: a state, the District of Columbia, the commonwealth of Puerto Rico, Guam, American Samoa, the Northern Mariana Islands, the United States Virgin Islands, the federal government or a federally recognized Indian tribe.

~~(10)~~ (12) "Minor" means an individual who has not attained the age of eighteen (18) years.

~~(11)~~ (13) "Offender" means an individual convicted of an offense listed and described in section 18-8304, Idaho Code, or a substantially similar offense under the laws of another jurisdiction or military court or the court of another country deemed by the U.S. department of state, in its country reports on human rights practices, to have sufficient safeguards for fundamental fairness and due process.

~~(12)~~ (14) "Offense" means a sexual offense listed in section 18-8304, Idaho Code.

~~(13)~~ (15) "Psychosexual evaluation" means an evaluation that specifically addresses sexual development, sexual deviancy, sexual history and risk of reoffense as part of a comprehensive evaluation of an offender.

~~(14)~~ (16) "Recidivist" means an individual convicted two (2) or more times of any offense requiring registration under this chapter.

~~(15)~~ (17) "Residence" means the offender's present place of abode location where an offender habitually lives.

~~(16)~~ (18) "Student" means a person who is enrolled on a full-time or part-time basis in any public or private educational institution, including any secondary school, trade or professional institution or institution of higher education.

~~(17)~~ (19) "Violent sexual predator" means a person who was designated as a violent sexual predator by the sexual offender management board where such designation has not been removed by judicial action or otherwise.

SECTION 2. That Section 18-8329, Idaho Code, be, and the same is hereby amended to read as follows:

18-8329. ADULT CRIMINAL SEX OFFENDERS -- PROHIBITED ACCESS TO SCHOOL CHILDREN -- EXCEPTIONS. (1) If a person is currently registered or is required to register under the sex offender registration act as provided in chapter 83, title 18, Idaho Code, it is a misdemeanor for such person to:

(a) Be upon or to remain on the premises of any school building or school grounds in this state, upon the premises or grounds of any daycare, or upon other properties posted with a notice that they are used by a school or daycare, when the person has reason to believe children under the age of eighteen (18) years are present and are involved in a school or daycare activity, or when children are present within thirty (30) minutes before or after a scheduled school or daycare activity.

(b) Knowingly loiter on a public way within five hundred (500) feet from the property line of school or daycare grounds in this state, including properties posted with a notice that they are used by a school or daycare, when children under the age of eighteen (18) years are present and are involved in a school or daycare activity, or when children are present within thirty (30) minutes before or after a scheduled school or daycare activity.

(c) Be in any conveyance owned or leased by a school or daycare to transport students to or from school or daycare or a school- or daycare-related activity when children under the age of eighteen (18) years are present in the conveyance.

(d) Reside within five hundred (500) feet of the property on which a school or daycare is located, measured from the nearest point of the exterior wall of the offender's dwelling unit to the school's or daycare's property line, provided however, that this paragraph shall not apply if such person's residence was established prior to July 1, 2006, for a school, and prior to July 1, 2020, for a daycare in existence on that date. This paragraph shall not apply to such person whose residence is established prior to the establishment of a daycare within five hundred (500) feet of his dwelling unit. The provisions of this paragraph shall apply when the person resides at a residential or long-term care facility.

(e) For purposes of this chapter, "school" means any public or private school. "Daycare" means any licensed daycare as defined in chapter 11, title 39, Idaho Code.

The posted notices required in this subsection shall be at least one hundred (100) square inches, shall make reference to section 18-8329, Idaho Code, shall include the term "registered sex offender" and shall be placed at all public entrances to the property.

(2) The provisions of subsection (1) (a) and (b) of this section shall not apply when the person:

(a) Is a student in attendance at the school; or

(b) Is exercising his right to vote in public elections; or

(c) Is taking delivery of his mail through an official post office located on school grounds; or

(d) Contacts the school district or daycare office annually and prior to his first visit of a school year and has obtained written permission from the district or daycare to be on the school or daycare grounds or upon other property posted with a notice that the property is used by a school or daycare. For the purposes of this section, "contacts the school district or daycare office" shall include mail, facsimile machine, or by computer using the internet. The provisions of this subsection are required for an individual who:

(i) Is dropping off or picking up a child or children and the person is the child or children's parent or legal guardian; or

(ii) Is attending an academic conference or other scheduled extracurricular school event with school officials present when the offender is a parent or legal guardian of a child who is participating in the conference or extracurricular event. "Extracurricular" means any school-sponsored activity that is outside the regular curriculum, occurring during or outside regular school hours, including but not limited to academic, artistic, athletic or recreational activities; or

(iii) Is temporarily on school or daycare grounds, during school hours, for the purpose of making a mail, food, or other delivery.

(3) The provisions of subsection (1) (d) of this section shall not apply when the person:

(a) Resides at a state-licensed or certified facility for incarceration, ~~health, or convalescent care~~ or a hospital; or

(b) Stays at a homeless shelter or resides at a recovery facility, if such shelter or facility has been approved for sex offenders by the county sheriff ~~or municipal police chief~~.

(4) Nothing in this section shall prevent a school district or daycare from adopting more stringent safety and security requirements for employees and nonemployees while they are in district or daycare facilities and/or on district or daycare properties. If adopting more stringent safety and security requirements, the school district or daycare shall provide the requirements to any individual listed in subsection (2) (d) (i) through (iii) by mail, facsimile machine, or by computer using the internet.

SECTION 3. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.